

8. SPRING OAKS CAPITAL SPV, LLC v. COTTLE, 22CV1622**Amended Motion to Set Aside Default and Default Judgment**

Default and default judgment were entered on September 17, 2024.

On April 8, 2026, defendant filed an amended motion to set aside default and default judgment. Proof of service filed April 16, 2026, shows the motion was electronically served upon plaintiff on April 8, 2026. However, this is untimely service by one court day. (Code Civ. Proc., §§ 1005, subd. (b) [requiring 16 court days' notice before hearing], 1013, subd. (e) [adding two court days for electronic service].)

Even if service of the motion were timely made, the court would still deny the motion on the merits.

Defendant claims the judgment is void because: (1) the court did not have subject-matter jurisdiction;⁵ and (2) plaintiff failed to comply with the Fair Debt Buying Practices (Civ. Code, § 1788.50, et seq.), namely, Civil Code sections 1788.52 (requiring a debt buyer to possess certain information before making any written statement to a debtor in an attempt to collect a consumer debt) and 1788.60, subdivision (b) (requiring an authenticated copy of the underlying contract to be submitted to the court).

Each superior court has general subject matter jurisdiction and, subject to limited exceptions not applicable here, can adjudicate any and all cases before them. (See *Long v. Forty Niners Football Co., LLC* (2019) 33 Cal.App.5th 550, 555–556.) The court also notes that, on February 7, 2025, it denied plaintiff's motion to transfer venue, finding that this court does have personal jurisdiction over defendant and that the El Dorado Superior Court is a proper venue for this case.

Next, the requirements under Civil Code section 1788.52 relate to the first initial written statement to a debtor in a debt buyer's attempt to collect a consumer debt. It

⁵ Based on his argument, it appears defendant intended to claim that the court did not have personal jurisdiction over defendant because the underlying incident did not occur in South Lake Tahoe, California, and defendant resides in Pollock Pines, California.

does not impose any pleading requirements that would make the default judgment void in this case.

With respect to defendant's challenge under Civil Code section 1788.60, subdivision (b), the court finds that in support of its request for default judgment, plaintiff submitted a declaration with a copy of the subject-loan agreement attached thereto as Exhibit B, thereby satisfying the requirement under Civil Code section 1788.60, subdivision (b).

Lastly, defendant argues that plaintiff failed to comply with California Rules of Court ("CRC"), rule 3.740, subdivision (f), which provides: "If proofs of service of the complaint are filed or service by publication is made and defendants do not file responsive pleadings, the plaintiff must obtain a default judgment within 360 days after the filing of the complaint. If the plaintiff has not obtained a default judgment by that time, the court must issue an order to show cause why reasonable monetary sanctions should not be imposed. The order to show cause must be vacated if the plaintiff obtains a default judgment at least 10 court days before the order to show cause hearing."

Plaintiff filed its complaint on November 15, 2022. Therefore, under CRC 3.740, plaintiff was required to obtain a default judgment by November 13, 2023 (360 days after the filing of the complaint). Plaintiff did not obtain default judgment until September 16, 2024. The court finds, however, that CRC 3.740, subdivision (f) does not authorize the court to set aside default judgment for plaintiff's failure to comply with the time requirement. The rule specifically contemplates monetary sanctions, only.

Based on the above, the court denies defendant's motion to set aside default and default judgment.

TENTATIVE RULING # 8: DEFENDANT'S MOTION IS DENIED. NO HEARING ON THIS MATTER WILL BE HELD (*LEWIS v. SUPERIOR COURT* (1999) 19 CAL.4TH 1232, 1247), UNLESS A NOTICE OF INTENT TO APPEAR AND REQUEST FOR ORAL ARGUMENT IS

TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY TELEPHONE TO THE COURT AT (530) 573-3042 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. NOTICE TO ALL PARTIES OF AN INTENT TO APPEAR MUST BE MADE BY TELEPHONE OR IN PERSON. PROOF OF SERVICE OF SAID NOTICE MUST BE FILED PRIOR TO OR AT THE HEARING.